masthead did not appear on the flyer, and, despite an apparent belated attempt to make it appear otherwise, the Edition contained no volume and issue number identifying it as one in a continuing series of issues.

MCFL protests that determining the scope of the press exemption by reference to such factors inappropriately focuses on superficial considerations of form. However, it is precisely such factors that in combination permit the distinction of campaign flyers from regular publications. We regard such an inquiry as essential, since we cannot accept the notion that the distribution of such flyers by entities that happen to publish newsletters automatically entitles such organizations to the press exemption. A contrary position would open the door for those corporations and unions with in-house publications to engage in unlimited spending directly from their treasuries to distribute campaign material to the general public, thereby eviscerating § 441b's prohibition.[5]

In sum, we hold that MCFL's publication and distribution of the "Special Edition" is in violation of § 441b. We therefore turn to the constitutionality of that provision as applied to appellee.

III

A

Independent expenditures constitute expression "'at the core of our electoral process and of the First Amendment freedoms.'" *Buckley*, 424 U. S., at 39 (quoting *Williams* v. *Rhodes*, 393 U. S. 23, 32 (1968)). See also *FEC* v. *National Conservative Political Action Committee*, 470 U. S. 480, 493 (1985) *(NCPAC)* (independent expenditures "produce speech at the core of the First Amendment"). We must therefore

[5] Nor do we find the "Special Edition" akin to the normal business activity of a press entity deemed by some lower courts to fall within the exemption, such as the distribution of a letter soliciting subscriptions, see *FEC* v. *Phillips Publishing Co.*, 517 F. Supp. 1308, 1313 (DC 1981), or the dissemination of publicity, see *Reader's Digest Assn.* v. *FEC*, 509 F. Supp. 1210 (SDNY 1981).